Advancing Port Efficiency Through Maritime Single Windows in Africa

IMO

Head of Africa Section, TCID
Mwanaulu Issa Mwajita

Background- FAL and MSW

International Efforts - IMO Facilitation Convention



Regulations in IMO FAL Convention require Public Authorities to establish systems for electronic exchange of information between ships and ports from 8 April 2019.

The use of the "single window" concept is also encouraged so as to enable all the information required by public authorities in connection with the arrival, stay and departure of ships, persons and cargo, to be submitted via a single portal to avoid duplication of effort.

In its Annex, the FAL convention contains standards and recommended practices and rules for simplifying formalities, documentary requirements and procedures on ships arrival, stay and departure.

Background- FAL and MSW

- IMO, during **FAL 46** in May 2022, decided that the amendments to the IMO Facilitation (FAL) Convention should enter into force from **1st of January 2024.**
- These amendments **require signatories to the Convention to implement an electronic maritime single window for all declarations made by a ship in conjunction with international port calls.**

- Also, FAL 45 approved the **Revised Guidelines for Setting up a Maritime Single Window** (FAL.5/Circ.42/Rev.3) to **ensure a common understanding** of the machine-to-machine communication related to ship calls.
- However, neither the Convention nor the guidelines specify specific standards for the interface between ships/agents and the MSW.

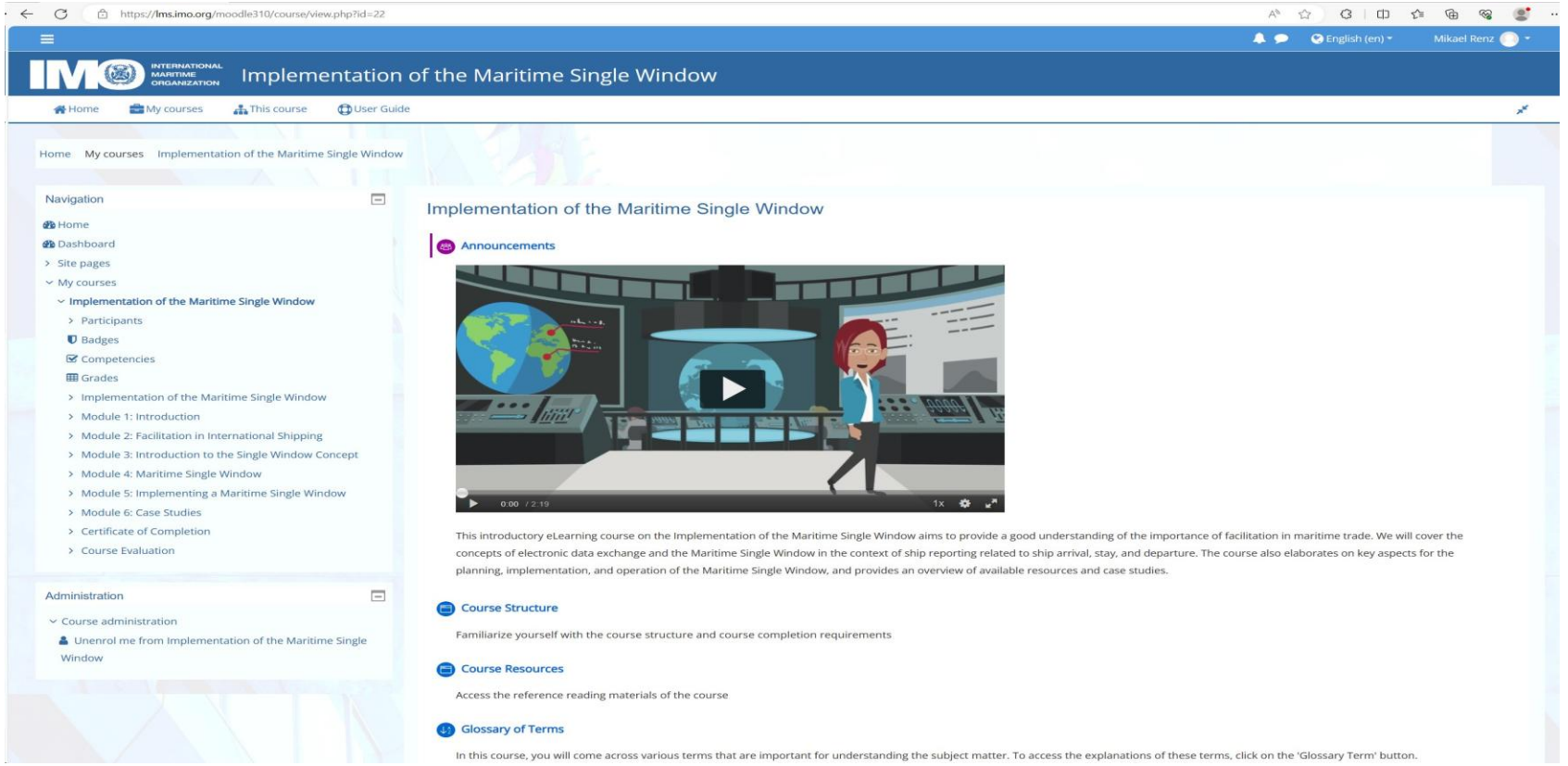
- Thus, there is **a significant risk that different MSW implementations in different ports will use different standards.**

- The **IMO FAL Compendium provides guidelines on the data sets and interfaces**

FAL CONVENTION AND OTHER IMO FAL INSTRUMENTS

- ✓FAL Convention adopted in 1965 and entered into force in 1967
- ✓Number of Contracting Governments: 131. **47 IMO Member States are not yet part of the FAL Convention**
- ✓Other IMO FAL instruments:
  - ✓IMO Compendium on Facilitation and Electronic Business
  - ✓Explanatory Manual
  - ✓Other guidance on FAL and MSW1
  - ✓E-learning course on MSW

FAL CONVENTION - MSW E-LEARNING COURSE



Media release

Circular Letter No.4773, of 11 September 2023

Total number of students: 1991

Total number of certificates issued: 740

LIST OF IMO MS THAT ARE NOT PARTIES OF THE FAL CONVENTION - JUNE 2025

Angola	Jamaica	Oman
Armenia	Kazakhstan	Pakistan
Bolivia (Plurinational State of)	Kiribati	Papua New Guinea
Bosnia and Herzegovina	Kuwait	Paraguay
Botswana	Kyrgyzstan	Philippines
Cambodia	Malawi	Qatar
Comoros	Maldives	San Marino
Cook Islands	Mauritania	Sao Tome and Principe
Democratic Republic of Congo	Mongolia	Solomon Islands
Djibouti	Morocco	Somalia
Equatorial Guinea	Mozambique	South Africa
Eritrea	Myanmar	Sudan
Ethiopia	Namibia	Timor-Leste
Grenada	Nauru	Turkmenistan
Haiti	Nepal	Tuvalu
	North Macedonia	Zimbabwe

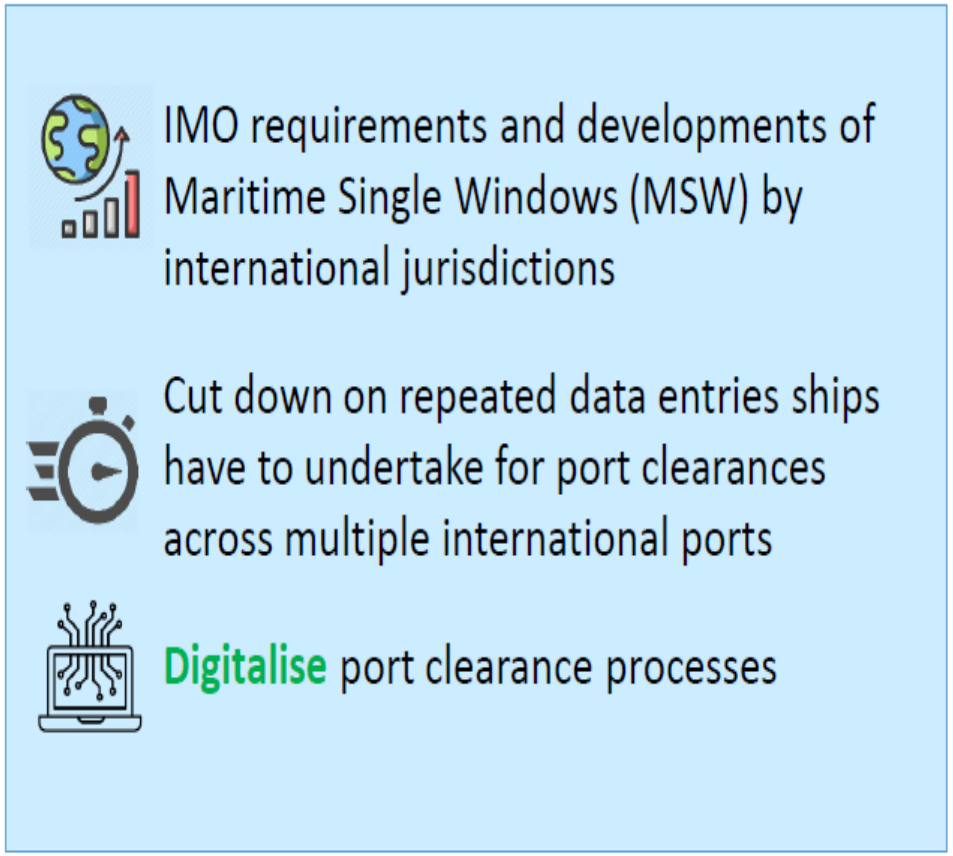
TYPE OF TECHNICAL COOPERATION ASSISTANCE ON FAL OFFERED BY IMO

- **Main type of activities:**
  - ✓ Development of road maps to adopt the FAL Convention
  - ✓ Identification of obstacles to the effective implementation of the FAL Convention
  - ✓ Incorporation of the FAL Convention into national legislation
  - ✓ Needs assessment missions
  - ✓ Support the development of MSW Systems
  - ✓ Regional and national workshops for institutional strengthening
  - ✓ Regional and national seminars on FAL guidelines
  - ✓ Conduct regional and national training and workshops on eradication of Illegal Wildlife Trade(IWT)

- Detailed information in document **TC 75/3(b), paragraphs 163 to 184**

- Note: FAL 46 decided that the annex in **FAL.5/Circ.42/Rev.3** that describe various **MSW implementations, should be reported in GISIS as a module**. Currently only 42 Member States have uploaded information

Global Efforts in Implementation of Regulatory Standards

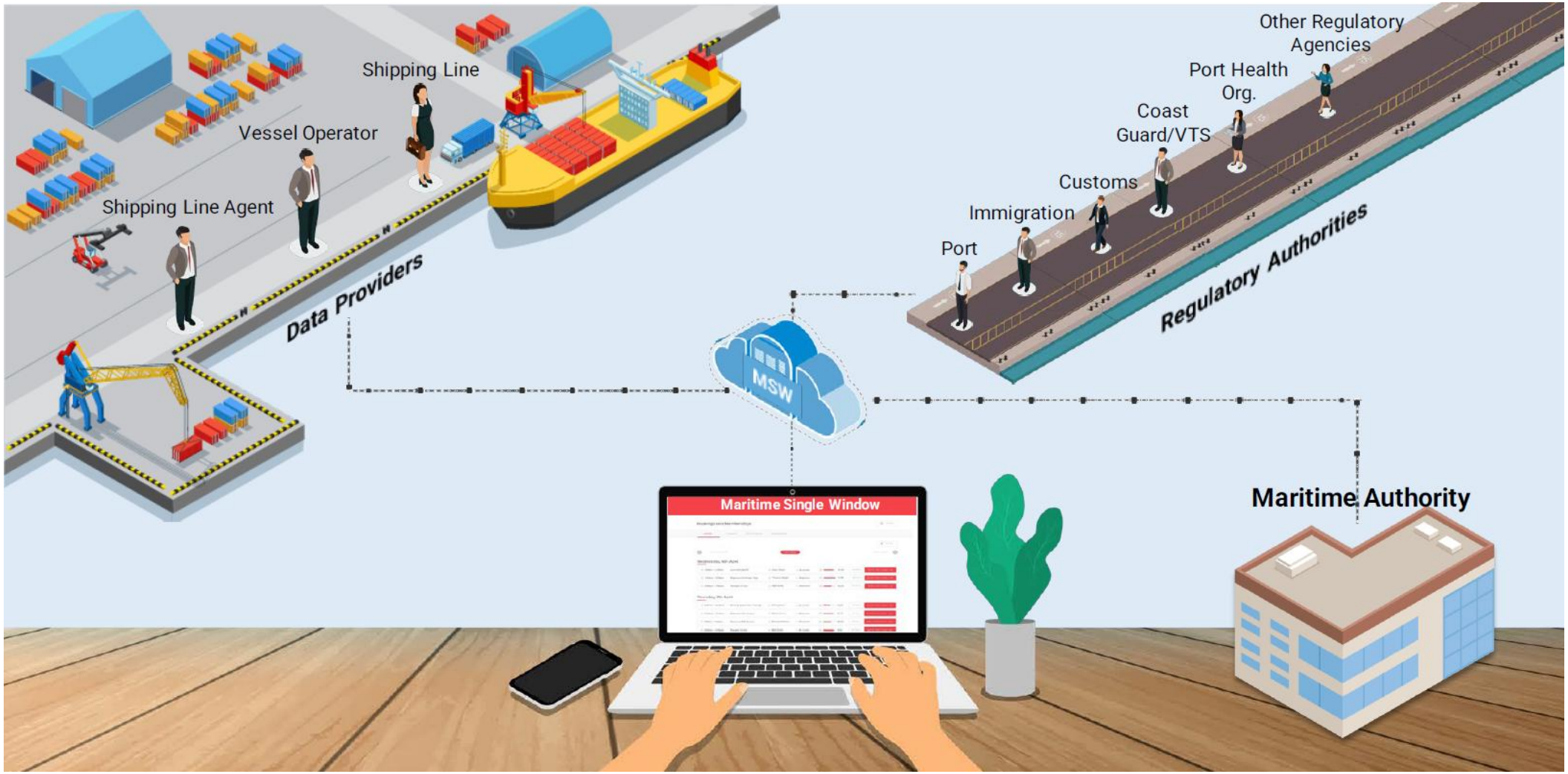


- Clear benefits to the international maritime and port community to **improve the efficiency and resilience of supply chains.**
- **Optimization of port calls** could also **lead to lowering of carbon emissions** through reducing vessel turnaround time.
- **IMO Guidelines for setting up a MSW** FAL5/Circ.42/rev.4

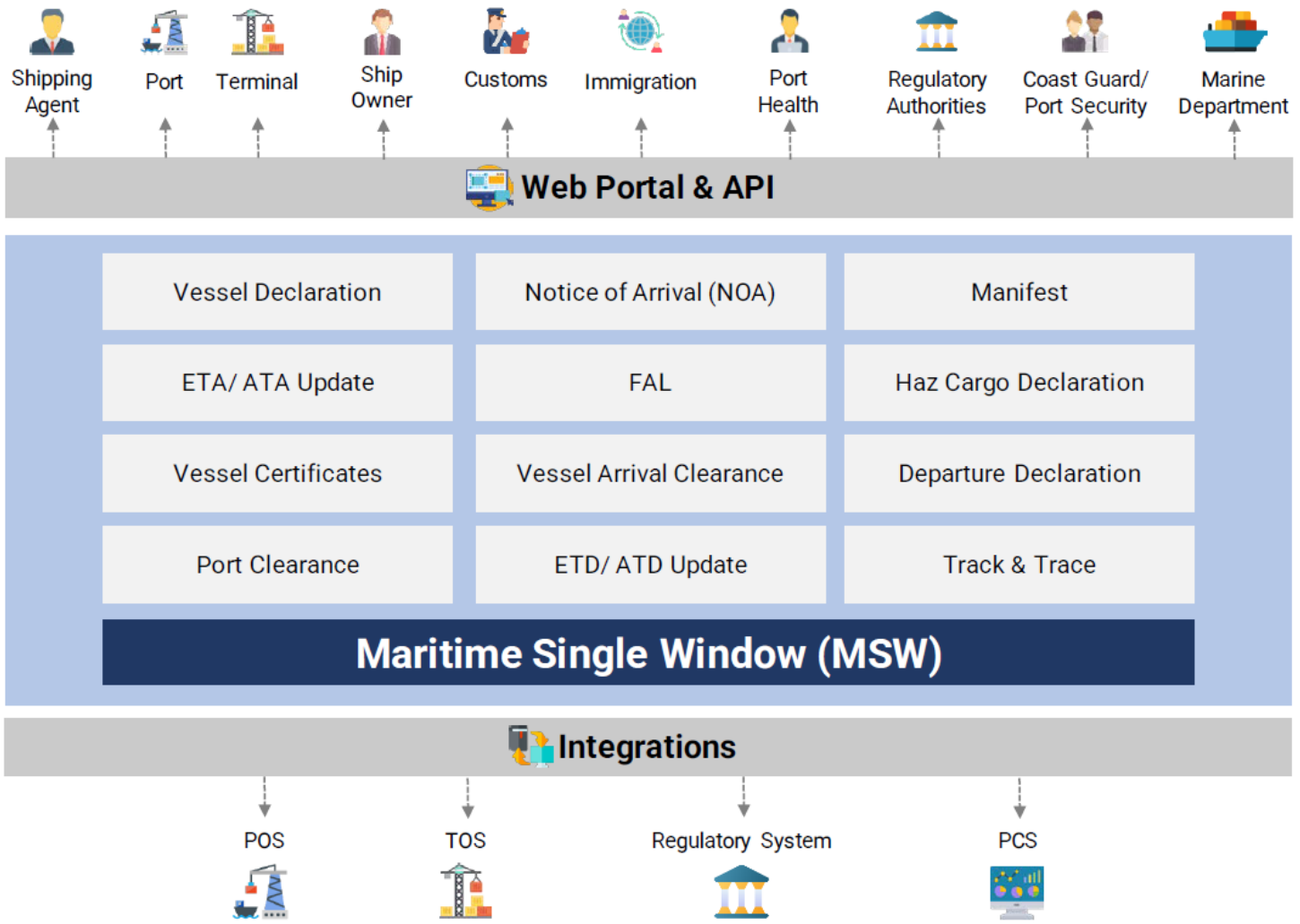
IMO SWiFT Project
(Single Window for Facilitation of Trade)
A generic maritime single window to support digitalization of shipping

- A generic Maritime Single Window (MSW) system to help countries in their digital transformation of port reporting formalities

The MSW Environment

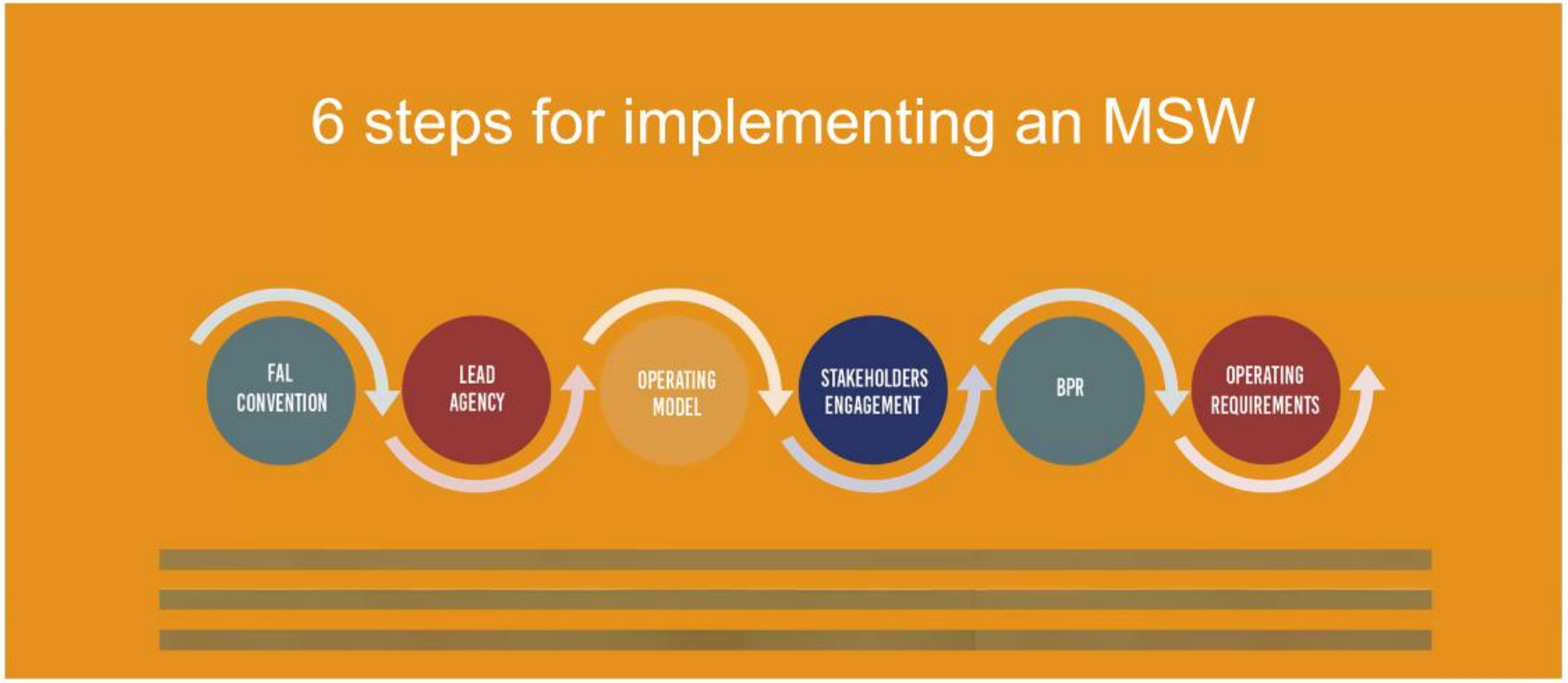


The MSW Functional Overview



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Six Steps for MSW Implementation



MAIN CHALLENGES OF MEMBER STATES ON FACILITATION

- Ports: a place of **concurrence of competencies** of different administrations
- **Need for cooperation:** establishment of National Facilitation Committees
- **Political Will** is a must
- Need of **a leading agency**
- Need to **involve all government and private stakeholders** in the process

The Legislative Framework

An **efficient legal framework is critical to the MSW's successful implementation** and functioning.

It defines the **roles, responsibilities, and obligations of parties** involved, particularly the MSW operator and internal and external user.

It serves as a guide and ensures that all parties involved are held accountable and responsible for their actions, thereby promoting transparency and fairness.

In summary, **a well-defined legislative framework is crucial to the smooth functioning of a MSW system,** ensuring the seamless exchange of information, fostering trust among stakeholders, and promoting accountability.

The Legislative Framework - National and International

When creating a national legal framework, it is **crucial to consider the legislation of all port, maritime and cross-border agencies to ensure compliance.**

This means that **procedural changes must be legally conformant and aligned with existing regulations** to avoid legal complications, unnecessary delays, or even legal disputes.

In addition, the national **legislation should comply with international legal instruments by the World Trade Organization's Trade Facilitation Agreement (TFA), International Maritime Organization's (IMO) Facilitation** Convention (FAL), the World Customs Organization's (WCO) Framework of Standards to Secure and Facilitate Global Trade (SAFE) and the United Nations Centre for Trade Facilitation and Electronic Business (**UN/CEFACT**).

Failure to comply may lead to legal or reputational risks, which could have serious consequences for the MSW/SWS/PCS and its stakeholders.

The Legislative Framework – Reforms for MSW

Legal and regulatory reforms are necessary to facilitate two key aspects related to the MSW.

Firstly, these **reforms are required for the establishment of the System itself, ensuring that the necessary legal framework is in place to support it's functioning**

Secondly, these **reforms are needed to enable the MSW operator to effectively provide its services.**

Both aspects **require adjustments to existing laws and regulations to accommodate the unique requirements and complexities of the MSW environment.** Laws governing **electronic transaction and data protection that recognize electronic records, transmission, authentication, and signatures,** e.g., to establish a comprehensive legal framework towards a " Data Collaboration Act," which not only lays out **the legal principles of data governance** but also **defines the rules of stakeholder engagement,** data orchestration, change management, and long-term sustainability. .

In many instances, regulations or decrees have **institutionalized governance frameworks to facilitate public-private collaboration.** These often include the **establishment of various entities such as the Inter-ministerial Committee, National Trade Facilitation Committee,** Steering Committee, Business Process Committee, and Working Groups.

MSW Implementation-Critical Success Factors

Change Management:

Support and change management: training & workshops for stakeholders

Regular **performance reviews** conducted to measure key metrics, such as **transaction time, system uptime, and user satisfaction**.

The project can consider a **phased approach for the rollout** of the MSW System, ensuring a smooth transition from the old processes to the new system.

Dedicated support teams to address any issues or concerns raised by stakeholders during the initial implementation stages

Stakeholder Engagement actively seek feedback to drive system acceptability, enhancements and optimize user experience.

Monitoring & Evaluation: Continuous Improvement:

Project team need to establish a robust **monitoring and evaluation framework** to assess the effectiveness of the MSW System and identify areas for improvement.

Thank you.

International Maritime Organization

4 Albert Embankment
London
SE1 7SR
United Kingdom

Tel: +44 (0)20 7735 7611
Fax: +44 (0)20 7587 3210
Email: info@imo.org

IMO website: www.imo.org

instagram.com/imo_hq/

x.com/IMOHQ

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